

IN THE HOUSE OF REPRESENTATIVES

HOUSE BILL NO. 603

BY JUDICIARY, RULES AND ADMINISTRATION COMMITTEE

AN ACT

RELATING TO THE CAPITOL MALL; AMENDING SECTION 67-1613, IDAHO CODE, TO REVISE PROVISIONS REGARDING CAMPING, TO PROVIDE FOR TEMPORARY CANOPIES, AND TO MAKE TECHNICAL CORRECTIONS; AMENDING SECTION 67-1613A, IDAHO CODE, TO REVISE A PROVISION REGARDING DISPOSITION OF PROPERTY; AMENDING SECTION 67-5709, IDAHO CODE, TO REVISE A PROVISION REGARDING MANAGEMENT OF STATE FACILITIES AND TO MAKE TECHNICAL CORRECTIONS; AND DECLARING AN EMERGENCY.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Section 67-1613, Idaho Code, be, and the same is hereby amended to read as follows:

67-1613. CAPITOL MALL AND OTHER STATE PROPERTY AND FACILITIES -- CAMPING PROHIBITED. (1) No person shall camp on or in any state-owned or leased property or facility, including, but not limited to, the capitol mall, except those that are designated as a recreational camping ground, area or facility. Any symbolic tents or other enclosed structures shall be removed from 9:00 p.m. local time to 6:00 a.m. local time, unless otherwise provided for in any applicable rules promulgated by the department of administration. The provisions of this section shall not apply or affect policies, rules, statutes or leases on endowment lands, department of parks and recreation lands or department of fish and game lands. ~~For the purposes of this section, the term "camp" or "camping" means to use as a temporary or permanent place of dwelling, lodging or living accommodation, and which indicia of camping may include, but are not limited to, storing personal belongings, using tents or other temporary structures for storing personal belongings or for sleeping, carrying on cooking activities, laying out bedding or making any fire. Any person who violates the provisions of this section shall be guilty of an infraction. Such persons shall be required to remove all their personal property from the state-owned or leased property.~~

(2) As used in this section:

(a) "Camp" or "camping" means to erect tents or other enclosed structures on state-owned or leased property or facilities at any time between sunset and sunrise, the use of state-owned or leased property or facilities as a temporary or permanent place of dwelling, lodging, residence, or living accommodation at any time, or any conduct that constitutes the indicia of camping.

(b) "Indicia of camping" may include but is not limited to storing personal belongings, storing food for future days, using tents or other temporary structures for storing personal belongings or food or for sleeping or lying down, carrying on cooking activities, sleeping or making preparations to sleep, including laying out a sleeping bag,

1 blanket, or other material used for bedding, making any fire, or doing
 2 any digging or earth breaking.

3 (3) Any person who violates the provisions of this section shall
 4 be guilty of an infraction. Regardless of whether a citation is issued,
 5 such person shall be required to remove all his personal property from the
 6 state-owned or leased property or facility.

7 (4) Nothing in this section shall preclude a person from erecting a tem-
 8 porary side-free canopy or other similar cover without side walls to stay dry
 9 during periods of rain or snow, including from sunset to sunrise, as long as
 10 it is not used for sleeping or camping and it complies with any rules promul-
 11 gated by the department of administration.

12 SECTION 2. That Section 67-1613A, Idaho Code, be, and the same is hereby
 13 amended to read as follows:

14 67-1613A. DISPOSITION OF PROPERTY. Any property remaining after is-
 15 suance of a citation, any property on state property in violation of an Idaho
 16 statute or administrative rule, or any property left unattended shall be
 17 held by the agency or its agent removing the property in a secure location for
 18 a period of not less than ninety (90) days. Notice shall be posted and remain
 19 at the nearest reasonable location to the place of removal with the agency's
 20 or agent's contact information for the ninety (90) day period. If property
 21 is not claimed within the ninety (90) day period, the property shall be
 22 deemed abandoned and the agency shall have the right to dispose of the prop-
 23 erty. A reasonable storage fee as determined by the agency may be assessed at
 24 the time an owner claims the property. The individual claiming the property
 25 shall produce identification and shall sign a release form providing his or
 26 her name and contact information and swearing that the property belongs to
 27 the claiming party. If the provisions of this section are complied with, the
 28 state of Idaho, its agents, employees and contractors shall be immune from
 29 legal liability for the administration of this section.

30 SECTION 3. That Section 67-5709, Idaho Code, be, and the same is hereby
 31 amended to read as follows:

32 67-5709. MANAGEMENT OF STATE FACILITIES. (1) In addition to the
 33 authority granted by section 67-1603, Idaho Code, the director of the de-
 34 partment of administration shall have exclusive control of the capitol mall
 35 properties identified in subsection (2) of this section and, where not oth-
 36 erwise established by law, ~~multi-agency~~ multiagency facilities owned or
 37 leased by the state of Idaho. The department of administration shall have
 38 authority to promulgate rules relating to use of those properties, including
 39 the authority to promulgate rules requiring a permit for various uses of the
 40 properties. Violations of rules promulgated under this section shall be in-
 41 fractions. The director shall have authority to sue to enjoin any threatened
 42 or continuing violation of such rules.

43 (2) Except as otherwise provided by law, the capitol mall properties
 44 shall include state of Idaho lands and buildings, together with any ap-
 45 purtenant grounds and systems, ~~including,~~ but not limited to, ~~electrical,~~
 46 plumbing, sewer, water, heating, ventilation and air conditioning systems
 47 as well as geothermal systems and tunnels, located between blocks one (1)

1 and one hundred thirty-six (136) as shown on the Boise City city original
 2 townsite plat filed in the Ada County county recorder's office in book 1 on
 3 page 1. Subject to the following, the capitol mall properties ~~shall~~ may be
 4 identified in rules promulgated pursuant to this section:

5 (a) At a minimum, the capitol mall properties shall consist of the fol-
 6 lowing grounds, buildings, improvements and real property in Boise,
 7 Idaho: Joe R. Williams (700 W. State street), Len B. Jordan (650 W.
 8 State street), Pete T. Cenarrusa (450 W. State street), Division of
 9 Public Works (502 N. 4th street), Alexander House (304 W. State street),
 10 State Library (325 W. State street), Secretary of State (450 N. 4th
 11 street), 954 Jefferson (954 W. Jefferson street), Capitol Annex (514 W.
 12 Jefferson street), Borah Building (304 N. 8th street), and Steunenberg
 13 Monument Park (intersection of Capitol boulevard and Bannock street),
 14 and the Idaho Supreme Court (451 W. State street); provided, that the
 15 Idaho supreme court may regulate uses at the Idaho supreme court build-
 16 ing and its grounds.

17 (b) The parking facilities, including appurtenant grounds and systems,
 18 at the following locations in Boise, Idaho, shall also be within the
 19 capitol mall properties: West State street parking facility, occupying
 20 block 101 as shown on the Boise City city original townsite plat; 3rd
 21 street and Washington street parking facility, occupying a portion of
 22 block 105 as shown on the Boise City city original townsite plat; 6th
 23 street and Washington street parking facility, occupying a portion of
 24 block 96 as shown on the Boise City city original townsite plat; 8th
 25 street and Jefferson street parking facility, occupying a portion of
 26 block 66 as shown on the Boise City city original townsite plat; and 10th
 27 street and Jefferson parking facility, occupying a portion of block 68
 28 as shown on the Boise City city original townsite plat.

29 (c) The space within the interior of the capitol building shall be al-
 30 located and controlled as set forth in section 67-1602, Idaho Code; pro-
 31 vided however, that the executive and legislative departments may sub-
 32 ject all or a part of such space to the rules promulgated pursuant to
 33 this section as set forth in subsection (3) of this section.

34 (3) Rules promulgated pursuant to this section shall apply to proper-
 35 ties not described in subsection (1) of this section upon the request of the
 36 state of Idaho public entity owning or controlling the property. When such
 37 a request has been made, the property subject to the request shall be iden-
 38 tified by the director of the department of administration in rules promul-
 39 gated ~~under~~ pursuant to this section. Violations of the rules adopted ~~under~~
 40 pursuant to this section shall be infractions. The director of the depart-
 41 ment of administration and the governing authority of the requesting entity
 42 shall have the authority to sue to enjoin any threatened or continuing vio-
 43 lation of such rules. All state law enforcement personnel, any sheriff or
 44 deputy sheriff in a county in which the property is located and any police of-
 45 ficer in a city in which the property is located shall have authority to en-
 46 force the rules for that property.

47 (4) Responsibility for law enforcement at the capitol mall properties
 48 is vested in the director of the Idaho state police. In coordination with the
 49 director of the Idaho state police, Ada County county and the city of Boise
 50 are granted jurisdiction to enforce the laws of the state of Idaho, the or-

1 dinances of Ada ~~County~~ county, the ordinances of the city of Boise and the
2 rules promulgated pursuant to this section. The director of the department
3 of administration, or his designee, shall be responsible for security at the
4 capitol mall properties and has the authority to contract with private con-
5 tractors to provide security for persons and property at the capitol mall
6 properties.

7 (5) The director of the department of administration may pay person-
8 nel costs and operating expenditures incurred in the operation and manage-
9 ment of the capitol mall properties and the multiagency facilities from the
10 rents received therefrom. In addition to funding annual operating costs,
11 rental rates at multiagency facilities shall include a provision sufficient
12 to provide for the long-term maintenance and upkeep of the facilities, sub-
13 ject to the review and approval of the permanent building fund advisory coun-
14 cil. Proceeds accruing from such rental contracts and lease agreements af-
15 ter payment of personnel costs and operating expenditures ~~which~~ that are in
16 excess of two hundred thousand dollars (\$200,000) at the end of the fiscal
17 year shall be deposited to the credit of the permanent building fund and ac-
18 counted for separately for each property. Proceeds from the rental of park-
19 ing spaces at the capitol mall shall be deposited upon receipt to the credit
20 of the permanent building fund. Said proceeds shall not be expended without
21 an appropriation and shall only be appropriated for the security, mainte-
22 nance and upkeep of the property generating the proceeds.

23 (6) Nothing contained in this section shall be deemed to give the de-
24 partment of administration control or management over the garden level, or
25 the first, third or fourth floors of the state capitol building, which are
26 vested with the legislative branch of government.

27 SECTION 4. An emergency existing therefor, which emergency is hereby
28 declared to exist, this act shall be in full force and effect on and after its
29 passage and approval.